

ance, and therefore judgments have been held to bind all lands of the conusee, whether vested in him beneficially, or in the character of trustee. But of course the *cestui que trust* will be protected from the legal process by application to a Court of equity (*f*).

[21. **Garnishee order.** — A garnishee order *nisi* to attach a debt due to a trustee will not be made absolute, if a *prima facie* case be made out that the money sought to be attached is trust money, but the money will be ordered into Court to abide the event of an inquiry whether it be trust money or not (*g*).]

[*246]

* SECTION III.

WHAT PERSONS TAKING THE LEGAL ESTATE WILL BE BOUND BY THE TRUST.

1. **General rule.** — The universal rule, as trusts are now regulated, is, that all persons who take *through or under the trustee* (except purchasers for valuable consideration without notice), shall be liable to the trust.¹

2. **Heir and executor bound by the trust.** — On the death of the trustee, the *heir* (*a*), *executor*, or *administrator*, becomes the *legal* owner of the property; but as he merely represents the ancestor, testator, or intestate, he takes in the same character, and is therefore bound by the same equity.

3. **So the devisee.** — So, if a trustee devise the estate, the *devisee* takes the estate subject to the trust (*b*).

4. **And assigns by act inter vivos.** — So all *assigns* of the trusts by acts *inter vivos* (except purchasers for valuable consideration without notice), will be bound by the trust (*c*).

(*f*) *Finch v. Earl of Winchelsea*, 1 P. W. 277; *Burgh v. Francis*, 1 Eq. Ca. Ab. 320; *Medley v. Martin*, *Finch*, 63; *Prior v. Penpraze*, 4 Price, 90; *Langton v. Horton*, 1 Hare, 560, *per* Sir J. Wigram. See *ante*, p. 224, as to chattels taken in execution.

[(*g*) *Roberts v. Death*, 8 Q. B. D. 319.]

[(*a*) See now 44 & 45 Vict. c. 41, s. 30.]

(*b*) *Marlow v. Smith*, 2 P. W. 201, *per* Sir J. Jekyll; *Lord Grenville v. Blyth*, 16 Ves. 231, *per* Sir W. Grant.

(*c*) See *infra*.

¹ And, taking subject to the trust, they must either execute it, or convey the trust property to new trustees appointed by the Court.